

2:00 PM

LINE: 2

24-CIV-03510

ERIK DAVIS VS. ESTELLA WEEMS, ET AL

ERIK DAVIS
ESTELLA WEEMS

ROBERT G MACK
JASON P TORTORICI

NUNILA ACIO'S MOTION FOR APPOINTMENT OF GUARDIAN AD LITEM

TENTATIVE RULING:

For the reasons stated below, Janet Acio's motion to appoint a guardian ad litem for Nunila Acio is **GRANTED**, subject to the disclosure and undertaking stated below. The competing motion by Estella Weems and The Weems-Young Group, Inc. to appoint an independent guardian ad litem is **DENIED WITHOUT PREJUDICE** to a properly supported application based on a demonstrated conflict or later change of circumstances. Janet Acio is appointed guardian ad litem for Nunila Acio in her individual capacity in this action; Janet's separate status as trustee or litigant does not, by itself, confer authority to represent Nunila individually.

FINDINGS

The declarations from treating physicians, summarized in the moving papers, establish Nunila's present lack of capacity to conduct this litigation. An adult lacking legal capacity must appear through a duly authorized representative, including a court-appointed guardian ad litem. (Code Civ. Proc., §§ 372, subd. (a)(1), 373, subd. (c).) The guardian may be appointed "upon the application of a relative or friend of the person lacking legal competence to make decisions, or of any other party to the action or proceeding, or by the court on its own motion." (*Id.*, at § 373, subd. (c).)

Nunila's November 11, 2024 durable power of attorney appoints Janet and another family member as attorneys-in-fact. Such a designation supports a rebuttable presumption in favor of the nominee's appointment as guardian ad litem; it does not constitute appointment by itself. (*In re Marriage of Caballero* (1994) 27 Cal.App.4th 1139, 1151–1152.)

POTENTIAL CONFLICTS

The opposing parties identify Janet's relationship to an adverse party, her role as trustee and remainder beneficiary, and the possibility of claims concerning trust administration. The Court does not dismiss those matters categorically; rather, on the evidence presently summarized, no concrete, nonwaivable divergence between Nunila's individual interests and Janet's interests has been established that rebuts the presumption. Allegations of fraud or coercion in execution of the power of attorney remain speculative on this record. Janet shall promptly disclose on the record any actual or potential conflict, her relationships with other parties, her trust interests, and any material claim that Nunila may have against Janet or the trust. (Code Civ. Proc., § 372,

subd. (d).) No individual claim of Nunila against Janet shall be compromised or released without further court authorization after full disclosure and notice to interested parties.

IMPLEMENTATION

Janet shall submit any required consent, disclosure, and proposed appointment order identifying Nunila and the capacity in which Janet acts. The Court retains authority to replace the guardian ad litem if a material conflict appears or the appointment ceases to protect Nunila's interests.

Janet's request for judicial notice is **GRANTED ONLY** as to matters properly noticed, not the truth of disputed facts in court filings. (Evid. Code, § 452, subd. (d).)

If the tentative ruling is uncontested, it shall become the order of the Court. The prevailing party shall prepare and submit a proposed order repeating the tentative ruling verbatim, consistent with San Mateo County Superior Court Local Rule 3.403(b)(iv), and give notice as required by law. (Cal. Rules of Court, rule 3.1312.)

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LINE: 3

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ERIK DAVIS VS. ESTELLA WEEMS, ET AL

ERIK DAVIS
ESTELLA WEEMS

ROBERT G MACK
JASON P TORTORICI

DEFENDANT ESTELLA WEEMS AND CROSS DEFENDANT THE WEEMS-YOUNG GROUP'S MOTION TO APPOINT NEUTRAL GUARDIAN AD LITEM FOR CROSS-DEFENDANT/CROSS-COMPLAINANT NUNILA ACIO

TENTATIVE RULING:

In light of the Court's previous ruling granting Janet Acio's Motion for Appointment of Guardian Ad Litem, The competing motion by Estella Weems and The Weems-Young Group, Inc. to appoint an independent guardian ad litem is **DENIED WITHOUT PREJUDICE** to a properly supported application based on a demonstrated conflict or later change of circumstances.

If the tentative ruling is uncontested, it shall become the order of the Court. The prevailing party shall prepare and submit a proposed order repeating the tentative ruling verbatim, consistent with San Mateo County Superior Court Local Rule 3.403(b)(iv), and give notice as required by law. (Cal. Rules of Court, rule 3.1312.)